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Case Number: 24STCV34738 Hearing Date: August 18, 2026 Dept: 224

Gorbaty v. Villa Croft

TENTATIVE RULING

Plaintiff's motion to compel a further response to Form Interrogatory No. 17.1 is DENIED without prejudice on the ground that it was improperly combined with a separate motion directed to requests for admission.

Plaintiff's motion to compel further responses to Requests for Admission Nos. 1-2, 4-37, 39, and 41-42 is DENIED.

Plaintiff's motion to compel further responses and production as to Requests for Production Nos. 19, 27, and 71-73 is GRANTED. Defendant shall serve further verified, code-compliant responses and produce documents as set forth above within thirty (30) days of this order.

Introduction

On December 30, 2024, Plaintiff Moisey Gorbaty filed the Complaint in this action against Defendants Villa Croft Homeowners Association and ICE General Builder, Inc., alleging that he tripped and fell on May 10, 2024 on a mid-walkway concrete step at the subject premises.

On May 4, 2026, Defendant Villa Croft Homeowners Association (the "HOA Defendant") electronically served verified responses to Plaintiff's Requests for Admission, Set One, Form Interrogatories, Set One, and Requests for Production, Set One.

On June 22, 2026, Plaintiff filed two Motions to Compel Further Responses directed at Requests for Admission Nos. 1-2, 4-37, 39, and 41-42 and Form Interrogatory No. 17.1, and the Requests for Production Nos. 19, 27, and 71-73.

On August 3, 2026, the HOA Defendant filed its Oppositions to both motions.

On August 7, 2026, Plaintiff filed his Replies in support of both motions.

Combined Motion

As an initial matter, the Court notes that Plaintiff has combined two separate motions into a single filing: a motion to compel further responses to form interrogatories and a motion to compel further responses to requests for admission.

Multiple motions should not be combined into a single filing. (See Govt. Code, § 70617(a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ["Motions to compel compliance with separate discovery requests ordinarily should be filed separately."].)

For the reasons stated above, the motion to compel a further response to Form Interrogatory No. 17.1 is DENIED without prejudice. Plaintiff may, if he elects to do so, file a separate, properly noticed and separately reserved motion directed to Form Interrogatory No. 17.1, accompanied by its own separate statement and filing fee.

The Court proceeds to address Plaintiff's Motion to Compel Further Responses to Requests for Admission, and Requests for Production, below.

Meet and Confer

The Declaration of Steve A. Hoffman, Esq. executed on June 19, 2026, sets forth the meet and confer efforts of counsel for Plaintiff, and counsel's attempts to resolve the discovery disputes informally through written correspondence. Cal. Civ. Proc. Code § 2016.040 requires a meet and confer declaration to state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. The Court notes that the parties did not successfully meet and confer prior to the filing of the motions. The Court exercises its discretion to proceed on the merits of the motions.

Motion to Compel Further Responses to Requests for Admission Nos. 1-2, 4-37, 39, and 41-42

A party may move to compel a further response to a request for admission on the grounds that an answer is evasive or incomplete, or that an objection is without merit or too general. (Code Civ. Proc., § 2033.290(a).) The burden rests with the moving party to demonstrate that a further response is warranted.

Plaintiff has not carried that burden.

Plaintiff's principal contention – advanced in his stated reasons for compelling a further response to Form Interrogatory No. 17.1 and echoed throughout his papers – is that "a separate response is required as to "each" RFA," and that Defendant failed to provide one. Plaintiff's own separate statement refutes that contention. The separate statement sets forth each request for admission at issue together with Defendant's response, and it reflects that Defendant served a separate, substantive response to each of Requests for Admission Nos. 1-2, 4-37, 39, and 41-42. In each instance, Defendant answered with an unqualified denial. A denial is a code-compliant response. (Code Civ. Proc., § 2033.220(b)(2).) There is nothing evasive or incomplete about it.

The Court construes each of Defendant's responses to Requests for Admission Nos. 1-2, 4-37, 39, and 41-42 as an unqualified denial, unlimited and unqualified by the objections preceding it.

No further response is ordered. The motion is DENIED.

Motion to Compel Further Responses to Requests for Production Nos. 19, 27, and 71-73

A party may move to compel a further response to a demand for production where a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection is without merit or too general. (Code Civ. Proc., § 2031.310(a).) The moving party must set forth specific facts showing good cause for the discovery sought. (Id., § 2031.310(b)(1).)

Requests Nos. 19, 27, and 71-73 seek photographs of and documents concerning the mid-walkway concrete step, communications and text messages concerning the step and the contractor's work, and documents identified in or supporting Defendant's interrogatory responses. This material bears directly on notice, the existence of a dangerous condition, and the reasonableness of Defendant's conduct. Good cause is shown.

Defendant's boilerplate objections are without merit.

As to the central dispute, Defendant redacted portions of produced photographs and text messages, asserting no privilege but representing that the redactions were confined to unrelated personal material. The Discovery Act authorizes withholding only on a claim of privilege or work product, and then only upon compliance with section 2031.240(b), and does not permit a responding party to unilaterally excise portions of an otherwise responsive document based on its own assessment of relevance, the remedy for genuinely sensitive nonresponsive content being a protective order under section 2031.060 rather than self-help. Text messages and cell-phone photographs are electronically stored information, and images stripped of their dates, or produced as thumbnails where full-size images were demanded, are not produced in a reasonably usable form. (Code Civ. Proc., § 2031.280(d)(1).)

Further response is ordered.

The motion is GRANTED. Defendant shall serve further verified, code-compliant responses to Requests Nos. 19, 27, and 71-73 and shall produce (1) un-redacted copies of all responsive photographs, text messages, and communications previously produced in redacted form, or, as to any material Defendant contends is privileged or protected and withheld on that basis, a log complying with section 2031.240(b); (2) all responsive photographs in full-size form; and (3) all responsive text messages and photographs in a reasonably usable form.

Sanctions

Plaintiff seeks \$3,311.65 in monetary sanctions on each motion, based on 6.5 hours at \$500 per hour plus filing fees. The requests are DENIED.

As to the requests for admission, Plaintiff was unsuccessful and has not shown that Defendant's opposition lacked substantial justification. As to the requests for production, although Plaintiff has prevailed in part, Defendant served supplemental responses without court intervention, promptly addressed several of the concerns raised, and litigated a good-faith dispute over the propriety of relevance-based redactions on which the governing authority is not settled. The Court finds that Defendant acted with substantial justification and that the imposition of sanctions would be unjust under the circumstances. (Code Civ. Proc., §§ 2031.310(h), 2033.290(d).)

The Court further notes that the two sanctions requests are identical in amount and appear to seek compensation for substantially overlapping work.

Conclusion

Plaintiff's motion to compel a further response to Form Interrogatory No. 17.1 is DENIED without prejudice on the ground that it was improperly combined with a separate motion directed to requests for admission.

Plaintiff's motion to compel further responses to Requests for Admission Nos. 1-2, 4-37, 39, and 41-42 is DENIED.

Plaintiff's motion to compel further responses and production as to Requests for Production Nos. 19, 27, and 71-73 is GRANTED. Defendant shall serve further verified, code-compliant responses and produce documents as set forth above within thirty (30) days of this order.

The request for sanctions is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.